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CASE #	CASE NAME	HEARING NAME
CVRI2101568	MCDUFFIE VS CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling: Defendants California Department of Corrections and Rehabilitation and the State of California demur to the second amended complaint, which asserts two negligence causes of action (negligence and negligent infliction of emotional distress) related to plaintiff Daniel Cesario Ramirez and Demetrius Rogers contracting COVID-19 while in custody and the claim that the demurring defendants were aware they needed immediate medical care and did not provide it. The Court has previously sustained a demurrer to these allegations; Ramirez and Rogers added allegations that defendants' employees had actual or constructive knowledge of plaintiffs' diagnoses but failed to summon proper medical care.

Demurring defendants argue that they are immune under *California Government Code* § 844.6(a)(2), which provides that a public entity is not liable for an injury to any prisoner; this applies even when there is gross negligence. *Savitt v. Jordan* (1983) 142 Cal.App.3d 820, 822. A public entity is not vicariously liable for the acts of employees under *California Government Code* § 815.2 in the case of injury to prisoners. *Lawson v. Superior Court* (2010) 180 Cal. App. 4th 1372, 1383.

There is an exception to § 844.6; *California Government Code* § 845.6 provides that: Neither a public entity nor a public employee is liable for injury proximately caused by the failure of the employee to furnish or obtain medical care for a prisoner in his custody; but ... a public employee, and the public entity where the employee is acting within the scope of his employment, is liable if the employee knows or has reason to know that the prisoner is in need of immediate medical care and he fails to take reasonable action to summon such medical care.

This exception is narrowly written. See *Castaneda v. Department of Corrections & Rehabilitation* (2013) 212 Cal.App.4th 1051, 1070. "Liability under section 845.6 "is limited to serious and obvious medical conditions requiring immediate care." *Watson v. State of California* (1993) 21 Cal.App.4th 836, 841.

Plaintiffs allege that demurring defendants and their employees were aware that Rogers suffers from high blood pressure, severe allergies, and asthma; at the beginning of the pandemic, Rogers told defendants' nurse of his asthma and allergies. SAC ¶ 47(d). Rogers tested positive on July 6, 2020 and experienced symptoms of headaches, shortness of breath, and loss of taste and smell. *Id.* Medical staff and on-duty guards were aware of his positive test and pre-existing conditions. *Id.* Rogers alleges that he told medical staff and guards he was having difficulty breathing, asked for treatment and assistance with breathing, but was not provided any sort of medical attention or medication. *Id.*

Similarly, the SAC alleges that Ramirez suffers from severe allergies and that defendants were aware of this when he was incarcerated. SAC ¶ 47(b). Ramirez allegedly tested positive for Covid-19 on July 10, 2020, and experienced symptoms of body aches, congestion, headache, and sinus pain. The SAC alleges that medical staff and guards were aware of his test and symptoms. Ramirez alleges that he requested medical care and medication but was not provided any medical attention for two weeks. *Id.*

Both plaintiffs allege that their symptoms were worsened by the delay.

In light of the long-standing rule that a complaint must be liberally construed and that the Court must draw reasonable inferences favorable to the plaintiffs, the allegations of the SAC concerning Rogers' medical condition—difficulty breathing in addition to the other symptoms—are sufficient to meet the exception to statutory immunity for “serious and obvious medical conditions requiring immediate care.” *Watson, supra*, 21 Cal.App.4th at 841. In contrast, the allegations relating to Ramirez are not sufficient; they do not establish that he suffered from a serious and obvious medical condition that required immediate medical care.

The demurrer is overruled as to plaintiff Rogers and sustained without leave to amend as to plaintiff Ramirez.

Twenty days to answer.